

common law tort and include any practices that are likely to deceive members of the public. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) The UCL may only be privately enforced "by a person who has suffered injury in fact and has lost money or property as a result of the unfair competition." (Bus. & Prof. Code § 17204.)

Here, Plaintiffs eighth cause of action identifies Business Code §§ 17500, 17508(a), 17200 and Civil Code section 1770(a)(2) through (5). Rather than allege the essential elements of claims under those sections in the eighth cause of action itself, the Court presumes the Plaintiffs believe their general allegations are sufficient to state violations of each of these statutes. Plaintiffs also concede in their opposition that their theory of UCL violation against LSPCH is premised on a sort of joint tortfeasor/vicarious liability theory with John Muir Health—specifically, they argue that JMH fraudulently advertised its skills, and that LSPCH “acted in concert with JMH in committing the fraudulent acts alleged.” (Opp. at 12-14.)

The Court is not aware of any authority, and Plaintiffs have not cited any, that would support this theory of liability in UCL claims. Their concession that the fraudulent acts alleged in the FAC are only as to John Muir Health is fatal to their UCL (and Civil Code) claims against LSPCH.

The demurrer to the eighth cause of action is **sustained**, with leave to amend.

17. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
***HEARING ON MOTION IN RE: TO STRIKE PLAINTIFFS' FIRST AMENDED COMPLAINT**
FILED BY: LUCILE SALTER PACKARD CHILDREN'S HOSPITAL AT STANFORD
TENTATIVE RULING:

Before the Court is Lucile Salter Packard Children’s Hospital at Stanford (“Defendant” or “LSPCH”)’s motion to strike portions of Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint. Plaintiffs oppose the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, with leave to amend.

Legal Standard

California Civil Code (“CC”) § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and

conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

California Code of Civil Procedure § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Motion

Defendant seeks to strike the following from the First Amended Complaint:

- Page/Lines - 56:28-57:1: "Defendants, and each of them, are liable for exemplary and punitive damages and reasonable attorney's fees..."
- Page/Lines – 59:14-15: "For punitive damages in a sum according to proof and as the Court deems proper (pursuant to Plaintiffs' CCP § 425.13 Motion and Court Order);"
- Page/Lines – 59:21-22: "Statutory penalties, liquidated penalties, and all other penalties and/or damages that may be permitted by law;" and
- Page/Lines – 59:24: "Reasonable attorney's fees according to proof and as allowed by law."

Analysis

Punitive Damages

Defendant argues that 425.13 precludes Plaintiffs' punitive damages claim; Plaintiffs argue that it does not apply to Plaintiffs' claims against LPSCCH. Plaintiffs also argue that their fraud claim supports their claim for punitive damages.

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for "any misconduct 'directly related to the professional services provided by the healthcare provider.'" (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714, quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189.)

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients' claims for fraud, conversion,

and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiffs would appear to be able to seek punitive damages for their claims of negligent infliction of emotional distress and fraud.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Where the fraud cause of action is not adequately pleaded, it would not support the claim for punitive damages. Such is the case here.

Furthermore, when seeking punitive damages against a corporation like Defendant, Plaintiffs must allege “advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation.” (Civ. Code §3294.) A review of Plaintiff’s FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendant’s motion is **granted** with respect to the punitive damages allegations.

Attorney’s Fees

Defendant moves to strike Plaintiffs’ prayer for attorney’s fees on the grounds that plaintiffs have not alleged any contractual provision that would entitle them to attorney’s fees.

While Defendant is correct that Plaintiffs have not alleged any contractual provision that would entitle them to attorneys’ fees, unsupported attorneys’ fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, “[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys’ fees are recoverable as costs if authorized by statute, contract or law. (CCP, § 1033.5, subd. (a)(10).)

As a consequence, Defendant’s motion is **denied** with respect to the attorney’s fees allegations.

Statutory and Liquidated Penalties

Similarly, Defendants move to strike Plaintiffs’ prayer for “statutory damages and liquidated penalties.” However, for similar reasons as above, the Court **denies** the motion as to this portion of Plaintiffs’

prayer for relief.

18. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: WALIA, SANDEEP, MD
TENTATIVE RULING:

Before the Court is Defendant Sandeep Walia, M.D. (“Defendant” or “Walia”)’s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint.

Defendant demurs to Plaintiffs’ causes of action for (1) professional negligence, (4) Negligent infliction of emotional distress (Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), and (7) fraud.

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

As a threshold issue, the Court declines to sustain the Demurrer on the grounds of uncertainty. Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly’s of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7(l)-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

While true that the FAC relies largely on group allegations against all Defendants, it is not so unclear that Defendant cannot even determine what he must respond to. That said, because the Court sustains the Defendant’s demurrer with leave to amend, it would behoove the Plaintiffs to amend with greater clarity as between all the Defendants.